

The Chota Nagpur Tenures Act, 1869

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State of Jharkhand - Act

The Chota Nagpur Tenures Act, 1869

JHARKHAND

India

The Chota Nagpur Tenures Act, 1869

Act 2 of 1869

Published on 17 March 1869

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The Chota Nagpur Tenures Act, 1869

Bengal Act

2 of 1869

[Dated 17th March, 1869]

An Act to ascertain, regulate and record certain tenures in Chota Nagpur.

Preamble. - Whereas from a very early time certain tenures have existed in Chota Nagpur, known as bhuinhari, held by persons claiming to be descendants of the original founders of the villages in which such lands are situated, or their assigns; and also, certain similar tenures known as bhetkheta, dalikatari and pahnai, consisting of lands set apart for the duties which the village pahan, or priest, is required to perform, and for his maintenance, and also other similar tenures known as mahtoai, consisting of lands allotted to the village mahto, or collector of rents;

And whereas, where the above tenures are found, there are also lands known as majhahas, reserved for the use of the

respective proprietors of the villages, and their absolute disposal, and also lands known as bhetkheta, ordinarily assigned as remuneration to the villagers who work for the proprietor or his assigns on the majhahas land.

And whereas, disputes have arisen rendering it desirable that these tenures should be defined and recorded, and a register made of all rights, villages, immunities and liabilities affecting the holders thereof;

It is enacted as follows :-

1.

Construction.

- In the construction of this Act, the words and expressions following shall have the meaning hereinafter in this section attributed to them respectively, unless a contrary sense be apparent from the context;

the word shall include the tenures mentioned in the preamble as bhetkheta, dalikatari, pahnaia and mahtoai;

2.

Power to appoint Commissioners limits of jurisdiction.

- It shall be lawful for the [State]

[Substituted by A.L.O.]

Government of Bengal, by an order published in the [Official Gazette]

[Substituted by A.O. for 'Calcutta Gazette'.]

, to appoint one or more persons, as may be judged expedient to be a Commissioner or Commissioners for the purposes of this Act, and by an order, also published in the [Official Gazette]

[Substituted by A.O. for 'Calcutta Gazette'.]

, to define the limits within which each Special Commissioner so to be appointed shall exercise jurisdiction under this Act; and from time to time, in like manner, to vary or revoke any order made by the said [State]

[Substituted by A.L.O.]

Government under the provisions of this Act, and to appoint some other person or persons to be Commissioners for the purposes of this Act.

3.

Duties of Special Commissioner.

- Each Special Commissioner so appointed shall, with all convenient speed, investigate and ascertain the titles and tenures of all lands within the limits so assigned to him, which may be alleged by any person to be held upon bhuinhari and majhahas tenures respectively, and shall demarcate the same.

4.

Powers of Special Commissioner.

- In making such investigation, the Special Commissioner, in addition to all powers conferred on him by this Act, shall, as far as may be necessary for the purposes of this Act, exercise all such and the same powers as are conferred by Regulation 7 of 1822, and the Regulations and Acts amending the same, upon a Collector making a settlement of land-revenue.

5.

Contents of record.

- The Special Commissioner shall make an accurate register, in such form as may from time to time be ordered by the [State]

[Substituted by A.O.L]

Government of Bengal, of the lands which [it]

[Substituted by A.O. for 'he'.]

may ascertain to belong to the bhuinhari and majhahas classes respectively; of the conditions to be fulfilled, and the rents and services to be rendered in respect of the several lands of those classes which he may ascertain to be held subject to any conditions, rents or service; and of the rights and privileges to be enjoyed in respect of any such lands.

6.

Power to restore persons wrongfully dispossessed.

- In case it shall be proved to the Special Commissioner that any person, who within twenty years next before the passing of this Act held any lands of 'bhuinhari' or majhahas tenure, has been wrongfully dispossessed of such lands, the Special Commissioner shall cause such person, or in case of his being dead, the heir of such persons, to be put in possession of such lands, and shall cause the name of the person so put in possession to be entered in the register as

the occupant of the said lands on any bhuinhari or majhahas tenure, as the case may be.

7.

Presumption as to services to be rendered.

- It shall be presumed that all lands which may be found under the provisions of this act to be bhuinhari or majhahas tenure respectively are rightly subject to the conditions, rents and services upon which such lands respectively are found to be held at the time of the inquiry made by the Special Commissioner, unless it be proved that at some former time, within twenty years before the passing of this Act, such lands were held subject of an upon other and different conditions, rents and services; in which case it shall be presumed that such lands are rightly subject to the conditions, rents and services subject to which they shall be proved to have been held at the earliest period within the said term of twenty years with respect to which such proof shall have been given.

8.

Lands not to be registered if tenure commenced within twenty years.

- No lands shall be registered as lands of bhuinhari or majhahas tenure if it be proved that the occupation of such lands upon such tenure commenced within the term of twenty years before the passing of this Act, unless it be proved that such occupation was in pursuance or revival of an occupation upon such tenure rightfully enjoyed before the commencement of such term.

9.

Power to apply for commutation of services.

- Whether any lands of bhuinhari tenure are held subject to any conditions or services other than or besides the payment of a rent in money, it shall be lawful for the bhuinhari tenants of such lands, or for any person who may have the immediate right receiving the rents and services issuing from such lands (provided such mentioned person has such right in perpetuity), or if there be no such person other than the Zamindar then for the Zamindar to apply in writing to the Special Commissioner for the commutation of all such conditions and service other than or besides the payment of a rent in money.

10.

On such application notice to appoint assessors to be served.

- On receipt of any such application, the Special Commissioner shall cause to be served upon each of the person who under the provisions of Section 9 would have a right to make such application, a notice in writing requiring such person within 10 days from the day of the service of such notice, to nominate, by notice in writing to the Special Commissioner, some person to act as assessor to the Special Commissioner, in fixing the amount of rent which shall be payable in commutation for such conditions and services, and to be present before the Special Commissioner, and to cause such assessor to be there present upon some day to be named in such notice and not to be less than fifteen days from the day of the service of such notice.

11.

Special Commissioner to hear application with assessors.

- Upon the day which shall have been appointed by Special Commissioner for the attendance of the parties and assessors as herein (before) is provided, the Special Commissioner shall, with the assistance of any assessors who may have been within the time hereinbefore respectively in that behalf mentioned, duly nominated as aforesaid, and who may be present, and, if there be no such assessors, then without such assistance, proceed to consider and determine the amount of rent fairly and equitably to be payable in commutation of the conditions and services other than rent to which such tenure may be subject.

12.

Decision to be by Special Commissioner.

- The opinion of each assessor shall be given orally, and shall be recorded in writing by the Special Commissioner, but the decision is vested exclusively in the Special Commissioner.

13.

Review of decision by Special Commissioner alone.

- In case any review of any decision under Section 12 may be ordered, such review shall be heard and determined by the Special Commissioner without the assistance of assessors; and in case, in consequence of any order on appeal, a further inquiry into the subject-matter of any such decision may be necessary, such further inquiry may, if he shall so think fit, be heard and determined by the Special Commissioner without the assistance of assessors.

14.

Power of appeal.

- Any person who may be aggrieved by any decision or order of the Special Commissioner made under this act may appeal to the Commissioners of the division against such decision or order by a petition; but no such petition shall be received after the expiration of three months from the date of such decision or order, unless sufficient cause for the delay be shown to the satisfaction of the said Commissioner of the division, who shall have power to hear and determine the matter of every such petition of appeal.

15.

Power to apply for review of judgement.

- Any person considering himself aggrieved by any order or decision of the Special Commissioner from which no appeal shall have been preferred, or by any order of the Commissioner of the division in appeal, may apply for a review of judgement by the officer by whom such order or decision was made.

16.

Application within a month.

- Such application may be made within one month from the date of the order of decision, and not afterwards.

17.

Power to grant or refuse review.

- If the Special Commissioner or the Commissioner of the division, as the case may be, shall be of opinion that there are not any sufficient grounds for a review he shall reject the application; but if he shall be of opinion that the review desired is necessary to correct an evident error or Commission, or is otherwise requisite for the ends of justice, the Special Commissioner, or the Commissioner of the division, as the case may be, shall grant the review, and his order in either case, whether for rejecting the application or granting the review, shall be final.

18.

Review not to be granted without notice.

- No review of an order or decision shall be granted until notice shall have been given to every person who had appeared in the proceedings in which such order or decision was made, and whose interest would be injuriously affected by the review desired.

19.

On grant of application for review, rehearing to be directed.

- When an application for a review of judgement is granted, such order shall be made for rehearing the matter in respect of which such order or decision shall have been made as may seem proper.

20.

Decision to be final.

- No decision or order of the Special Commissioner shall be in any way altered, varied or reversed, save on review by the Special Commissioner under Sections 15, 16,17,18 and 19 of this Act, or by appeal to the Commissioner of the division under Section 14 of this Act; and no suit shall be received in any Court to vary or set aside any such order or decision of the Special Commissioner, or any decision or order upon appeal or upon review by the Commissioner of the division made under the provisions of this Act; and every such decision or order upon appeal by the Commissioner of the division shall be final, unless it be altered, varied or reversed by the said Commissioner on review under Sections 15,16,17,18 and 19 of this Act.

21.

No mukhtar nor vakil to be heard.

- No 'mukhtar' nor 'vakil' shall without the consent of the Special Commissioner, be heard in any proceeding before such Special Commissioner.

22.

[x x x]

[Section 22 repealed by Act 7 of 1970.]

23.

State Government may make rules.

- It shall be lawful for the said [State]

[Substituted by A.L.O. for 'Provincial'.]

Government from time to time to make such rules and orders as to [it]

[Substituted by A.O. for 'him'.]

may seem fit for regulating the practice and procedure to be followed in making the inquiries, investigations, demarcations and registers required by this Act, and all reviews thereof and appeals therefrom; and such rules and orders, when published in the [Official Gazette]

[Substituted by A.O., for 'Calcutta Gazette'.]

, shall have the same force and effect as if the same were a portion of this Act.

24.

Effect of judgement in suits commenced after Act passed.

- No judgement, decree or order in any suit instituted after the passing of this Act shall be evidence in any inquiry before the Special Commissioner respecting the tenure upon which any land is held, or the rents, services or conditions to which any land is subject.

25.

Register to be confirmed and published.

- The register of each village prepared under the provisions of Section 5 of this Act shall when finally revised and corrected in accordance with any decisions and orders of the Special Commissioner and the Commissioner of the division, under this Act, be published by the Commissioner of the division, and such confirmation shall be published forthwith in the [Official Gazette]

[Substituted by A.O., for 'Calcutta Gazette'.]

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26.

Register to be conclusive evidence of matters recorded therein.

- Every register to be prepared under this Act, after publication of the confirmation thereof in pursuance of the section next preceding, shall be conclusive evidence of all matters recorded in such register in pursuance of this Act; and, from and after such publication of the confirmation of the register relating to any village, no evidence shall be received that any lands in such village not mentioned in such register are of 'bhuinhari' and 'majhahas' tenure.

27.

Short title.

- This Act shall be called the Chota Nagpur Tenures Act, 1869.

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